

SCHEDULE "B" ITEMS

1. TAXES FOR THE FULL YEAR OF 2011, A LIEN NOT YET DUE OR PAYABLE. (THE FIRST HALF IS DUE OCTOBER 1, 2011 AND IS DELINQUENT NOVEMBER 1, 2011. THE SECOND HALF IS DUE MARCH 1, 2012 AND IS DELINQUENT MAY 1, 2012).
2. RESERVATIONS OR EXCEPTIONS IN PATENTS, OR IN ACTS AUTHORIZING THE ISSUANCE THEREOF.
3. WATER RIGHTS, CLAIMS OR TITLE TO WATER, AND AGREEMENTS, COVENANTS, CONDITIONS OR RIGHTS INCIDENT THERETO, WHETHER OR NOT SHOWN BY THE PUBLIC RECORDS. THIS EXCEPTION IS NOT LIMITED BY REASON OF DISCLOSURE OF ANY MATTER RELATING TO WATER RIGHTS AS MAY BE SET FORTH ELSEWHERE IN SCHEDULE B.
4. ANY CHARGE UPON THE LAND BY REASON OF ITS INCLUSION IN CENTRAL ARIZONA WATER CONSERVATION DISTRICT. NOTE: UPON COMPLIANCE WITH REQUIREMENT NO. 1 OF SCHEDULE B SECTION I HEREIN THE FOLLOWING WILL BE ADDED TO THE POLICY: (ALL ASSESSMENTS DUE AND PAYABLE ARE PAID CURRENT TO DATE OF POLICY.)
5. AN EASEMENT FOR PIPELINE AND INCIDENTAL PURPOSES RECORDED AS DOCKET 142, PAGE 352, OF OFFICIAL RECORDS.
6. ALL MATTERS AS SET FORTH IN AGREEMENT PERTAINING TO THE INSTALLATION OF GATE VALVE FOR PIPELINE, RECORDED, AS DOCKET 149, PAGE 488, OF OFFICIAL RECORDS AND AS SHOWN ON SURVEY PREPARED BY MERESTONE LAND SURVEY, DESIGNATED AS PROJECT NO. 11519, DATED 5-25-11.
7. INTENTIONALLY OMITTED.
8. AN EASEMENT FOR RAILROAD AND INCIDENTAL PURPOSES RECORDED AS DOCKET 388, PAGE 55, OF OFFICIAL RECORDS.
9. ALL MATTERS AS SET FORTH IN PHASED PROTECTED DEVELOPMENT RIGHTS PLAN AGREEMENT, RECORDED, AS 99-1383 AND RESOLUTION RECORDED AS 2000-045975, OF OFFICIAL RECORDS.
- (NOT PLOTTABLE; BLANKET AGREEMENT & RESOLUTION)
10. INTENTIONALLY OMITTED.
11. ALL MATTERS AS SET FORTH IN CABLE TELEVISION SERVICE AGREEMENT AND EASEMENT, RECORDED, AS 2003-029073, OF OFFICIAL RECORDS.
- (NOT PLOTTABLE; BLANKET AGREEMENT & EASEMENT)
12. AN EASEMENT FOR UNDERGROUND NATURAL GAS SUPPLY PIPELINE AND INCIDENTAL PURPOSES RECORDED AS 2003-054292 AND REAL PROPERTY ASSIGNMENT AND ASSUMPTION AGREEMENT RECORDED AS 2006-107262, OF OFFICIAL RECORDS.
13. INTENTIONALLY OMITTED.
14. THE TERMS, CONDITIONS AND PROVISIONS CONTAINED IN THE DOCUMENT ENTITLED TEMPORARY SEWER EASEMENT AGREEMENT RECORDED AS 2006-26140; AMENDED AND RESTATED AS 2006-42565 AND RE-RECORDED AS 2006-45801 AND RE-RECORDED AS 2006-047333, OF OFFICIAL RECORDS.
15. ALL MATTERS AS SET FORTH IN TEMPORARY SEWER EASEMENT AGREEMENT, RECORDED, AS 2007-001150, OF OFFICIAL RECORDS.
16. ANY FACTS, RIGHTS, INTERESTS OR CLAIMS BY REASON OF THE FOLLOWING MATTERS DISCLOSED BY SURVEY PREPARED BY MERESTONE LAND SURVEY, DESIGNATED AS PROJECT NO. 11519, DATED: 5-25-11.
a) CONCRETE CART PATHS LOCATED IN THE SOUTHERLY PORTION OF SAID LAND;
b) BARRICADES LOCATED IN THE NORTHEASTERLY PORTION OF SAID LAND;
c) UTILITY FACILITIES AND APPURTENANCES LYING OUTSIDE OF RECORDED EASEMENTS;
17. ANY FACTS ABOUT THE LAND THAT AN INSPECTION OR INQUIRY OF PARTIES IN POSSESSION WOULD DISCLOSE AND THAT ARE NOT SHOWN BY THE PUBLIC RECORDS.
18. ANY RIGHTS, INTEREST OR CLAIMS OF PARTIES IN POSSESSION OF THE LAND NOT SHOWN BY THE PUBLIC RECORDS. NOTE: THIS MATTER WILL BE MORE FULLY SET FORTH OR DELETED UPON COMPLIANCE WITH THE APPLICABLE REQUIREMENT.

LEGAL DESCRIPTION:

A PARCEL OF LAND LOCATED IN THE EAST HALF OF SECTION 11, TOWNSHIP 4 SOUTH, RANGE 8 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN, PINAL COUNTY, ARIZONA, DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHEAST CORNER OF SECTION 11, SAID CORNER BEING A GLO BRASS CAP, SAID CORNER BEARS SOUTH 00 DEGREES 06 MINUTES 02 SECONDS EAST, A DISTANCE OF 2657.06 FEET FROM THE EAST QUARTER CORNER OF SECTION 11, SAID EAST QUARTER BEING AN ALUMINUM CAP;

THENCE NORTH 89 DEGREES 35 MINUTES 39 SECONDS WEST, A DISTANCE OF 2648.66 FEET TO THE SOUTH QUARTER CORNER OF SECTION 11, SAID CORNER BEING A GLO BRASS CAP;

THENCE NORTH 00 DEGREES 01 MINUTES 09 SECONDS EAST ALONG THE MIDSECTION LINE OF SECTION 11, A DISTANCE OF 402.68 FEET TO THE POINT OF BEGINNING;

THENCE NORTH 00 DEGREES 01 MINUTES 09 SECONDS EAST ALONG SAID MID-SECTION LINE, A DISTANCE OF 3,568.47 FEET TO A POINT, SAID POINT BEARS SOUTH 00 DEGREES 01 MINUTES 09 SECONDS WEST, A DISTANCE OF 1323.84 FEET FROM THE NORTH QUARTER CORNER OF SECTION 11;

THENCE NORTH 89 DEGREES 59 MINUTES 07 SECONDS EAST, A DISTANCE OF 1,283.19 FEET TO THE WESTERLY RIGHT OF WAY LINE OF "CARGO AVENUE", AS SHOWN ON THE FINAL PLAT OF "OASIS AT MAGIC RANCH PHASE V AND VI" AS RECORDED IN CABINET G, SLIDE 71, IN THE RECORDS OF PINAL COUNTY, ARIZONA;

THENCE, SOUTH 00 DEGREES 00 MINUTES 53 SECONDS EAST, ALONG THE WESTERLY RIGHT OF WAY LINE OF SAID "CARGO AVENUE", A DISTANCE OF 261.62 FEET;

THENCE SOUTHERLY, CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE, A DISTANCE OF 111.08 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 175.00 FEET AND A CENTRAL ANGLE OF 36 DEGREES 22 MINUTES 08 SECONDS;

(CONTINUES ABOVE RIGHT)

A.L.T.A./A.C.S.M. LAND TITLE SURVEY

MAGIC RANCH 50

A PARCEL OF LAND LOCATED IN THE EAST HALF OF SECTION 11, TOWNSHIP 4 SOUTH, RANGE 8 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN, PINAL COUNTY, ARIZONA,

LEGAL DESCRIPTION (CONT'D):

THENCE CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE SOUTH 36 DEGREES 21 MINUTES 15 SECONDS WEST, A DISTANCE OF 717.82 FEET;

THENCE SOUTHWESTERLY, CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE, A DISTANCE OF 49.35 FEET ALONG A CURVE TO THE LEFT HAVING A RADIUS OF 275.00 FEET AND A CENTRAL ANGLE OF 10 DEGREES 16 MINUTES 52 SECONDS;

THENCE CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE, SOUTH 26 DEGREES 04 MINUTES 23 SECONDS WEST, A DISTANCE OF 153.29 FEET;

THENCE SOUTHWESTERLY, CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE, A DISTANCE OF 25.82 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 275.00 FEET AND A CENTRAL ANGLE OF 05 DEGREES 22 MINUTES 43 SECONDS;

THENCE CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE SOUTH 31 DEGREES 27 MINUTES 06 SECONDS WEST, A DISTANCE OF 78.72 FEET;

THENCE WESTERLY, CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE, A DISTANCE OF 37.33 FEET ALONG A NON-TANGENT CURVE TO THE RIGHT OF WHICH THE RADIUS POINT LIES NORTH 58 DEGREES 32 MINUTES 53 SECONDS WEST, A RADIUS OF 25.00 FEET, AND HAVING A CENTRAL ANGLE OF 85 DEGREES 33 MINUTES 14 SECONDS;

THENCE SOUTH 35 DEGREES 50 MINUTES 32 SECONDS WEST, A DISTANCE OF 50.60 FEET TO THE SOUTHWEST CORNER OF SAID FINAL PLAT AND THE SOUTH RIGHT OF WAY LINE OF "ESCAPE AVENUE" AS SHOWN THEREON;

THENCE SOUTH 62 DEGREES 59 MINUTES 30 SECONDS EAST, ALONG THE SOUTHERLY LINE OF SAID FINAL PLAT AND SAID SOUTH RIGHT OF WAY LINE, A DISTANCE OF 184.34 FEET;

THENCE LEAVING SAID SOUTH RIGHT OF WAY LINE AND THE SOUTH LINE OF SAID FINAL PLAT, SOUTH 31 DEGREES 15 MINUTES 54 SECONDS WEST, A DISTANCE OF 988.52 FEET;

THENCE SOUTH 00 DEGREES 06 MINUTES 37 SECONDS EAST, A DISTANCE OF 972.43 FEET;

THENCE SOUTHEASTERLY, A DISTANCE OF 255.06 FEET ALONG A NON-TANGENT CURVE TO THE LEFT OF WHICH THE RADIUS POINT LIES NORTH 89 DEGREES 53 MINUTES 34 SECONDS EAST, A RADIUS OF 150.00 FEET, AND HAVING A CENTRAL ANGLE OF 97 DEGREES 25 MINUTES 33 SECONDS;

THENCE SOUTH 11 DEGREES 21 MINUTES 18 SECONDS EAST, A DISTANCE OF 26.24 FEET;

THENCE SOUTH 48 DEGREES 55 MINUTES 54 SECONDS WEST, A DISTANCE OF 16.29 FEET TO A POINT ON THE NORTHWESTERLY RIGHT OF WAY LINE OF "HAVEN AVENUE" AS SHOWN ON THE FINAL PLAT OF "THE OASIS AT MAGIC RANCH - UNIT I", RECORDED IN CABINET D, SLIDE 52, IN THE RECORDS OF PINAL COUNTY, ARIZONA;

THENCE ALONG SAID NORTHWESTERLY RIGHT OF WAY LINE, SOUTH 71 DEGREES 05 MINUTES 50 SECONDS, A DISTANCE OF 13.59 FEET, MEASURED;

THENCE SOUTHWESTERLY, CONTINUING ALONG SAID NORTHWESTERLY RIGHT OF WAY LINE, A DISTANCE OF 134.41 FEET (120.96 FEET MEASURED) ALONG A NON-TANGENT CURVE TO THE LEFT OF WHICH THE RADIUS POINT LIES SOUTH 17 DEGREES 59 MINUTES 14 SECONDS EAST A RADIUS OF 825.00 FEET (843.45 FEET, MEASURED), AND HAVING A CENTRAL ANGLE OF 09 DEGREES 20 MINUTES 06 SECONDS (08 DEGREES 13 MINUTES 01 SECONDS, MEASURED);

THENCE CONTINUING ALONG SAID NORTHWESTERLY RIGHT OF WAY LINE SOUTH 62 DEGREES 40 MINUTES 41 SECONDS WEST, A DISTANCE OF 130.93 FEET;

THENCE WESTERLY, CONTINUING ALONG SAID NORTHWESTERLY RIGHT OF WAY LINE, A DISTANCE OF 39.27 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 25.00 FEET AND A CENTRAL ANGLE OF 90 DEGREES 00 MINUTES 00 SECONDS;

THENCE CONTINUING ALONG SAID NORTHWESTERLY RIGHT OF WAY LINE, SOUTH 62 DEGREES 40 MINUTES 41 SECONDS WEST, A DISTANCE OF 80.00 FEET TO THE SOUTHWESTERLY RIGHT OF WAY LINE OF "OASIS BOULEVARD" AS SHOWN ON SAID FINAL PLAT ;

THENCE CONTINUING ALONG SAID SOUTHWESTERLY RIGHT OF WAY LINE SOUTH 27 DEGREES 19 MINUTES 19 SECONDS EAST, A DISTANCE OF 123.93 FEET;

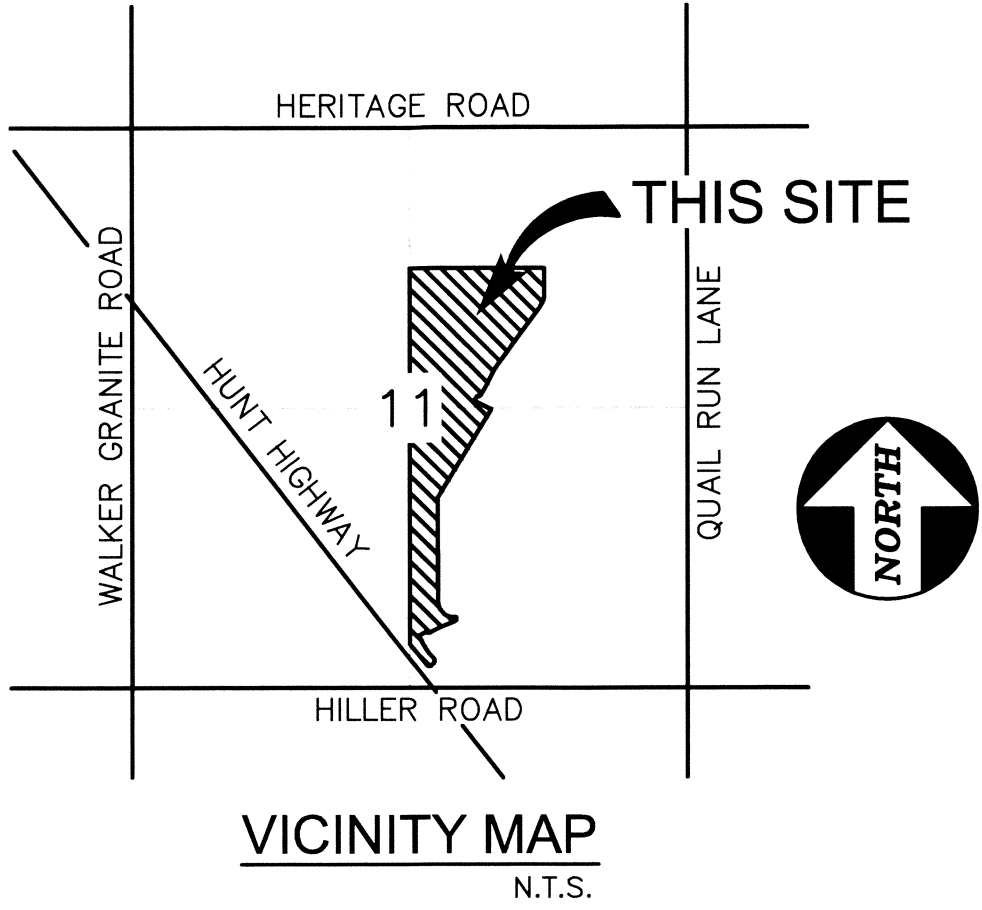
THENCE SOUTHEASTERLY, CONTINUING ALONG SAID SOUTHWESTERLY RIGHT OF WAY LINE, A DISTANCE OF 147.22 FEET ALONG A CURVE TO THE LEFT HAVING A RADIUS OF 430.00 FEET AND A CENTRAL ANGLE OF 19 DEGREES 37 MINUTES 01 SECONDS;

THENCE SOUTHERLY, ALONG SAID SOUTHWESTERLY RIGHT OF WAY LINE, A DISTANCE OF 42.91 FEET ALONG A REVERSE CURVE TO THE RIGHT HAVING A RADIUS OF 25.00 FEET AND A CENTRAL ANGLE OF 98 DEGREES 21 MINUTES 07 SECONDS TO THE NORTHWESTERLY RIGHT OF WAY LINE OF "OASIS LANE" AS SHOWN ON SAID FINAL PLAT;

THENCE ALONG SAID NORTHWESTERLY RIGHT OF WAY LINE, SOUTH 51 DEGREES 24 MINUTES 47 SECONDS WEST, A DISTANCE OF 41.12 FEET;

THENCE WESTERLY, CONTINUING ALONG SAID NORTHWESTERLY RIGHT OF WAY LINE, A DISTANCE OF 39.27 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 25.00 FEET AND A CENTRAL ANGLE OF 90 DEGREES 00 MINUTES 00 SECONDS TO THE NORTHEASTERLY RIGHT OF WAY LINE OF "HUNT HIGHWAY" AS SHOWN ON SAID FINAL PLAT;

THENCE ALONG SAID NORTHEASTERLY RIGHT OF WAY LINE, NORTH 38 DEGREES 35 MINUTES 13 SECONDS WEST, A DISTANCE OF 261.92 FEET TO THE POINT OF BEGINNING.



SURVEYOR:

MERESTONE LAND SURVEYING
14820 NORTH CAVE CREEK ROAD
PHOENIX, ARIZONA 85032
PHONE (602) 569-2000
FAX (602) 569-2021
CONTACT: GENE C. HARRISON II, R.L.S.

BASIS OF BEARINGS:

THE NORTH-SOUTH MID-SECTION LINE OF SECTION 11, T.4S., R.8E. OF THE GILA AND SALT RIVER BASE AND MERIDIAN, PINAL COUNTY, ARIZONA.

BEARING = N00°18'16"W (ASSUMED)

FLOOD ZONE:

ACCORDING TO THE FLOOD INSURANCE RATE MAP #04021C0875E, DATED DECEMBER 4, 2007, THIS PROPERTY IS LOCATED IN FLOOD ZONE "X".

ZONE "X" IS DESCRIBED AS AREAS OF 0.2% ANNUAL CHANCE FLOOD; AREAS OF 1% ANNUAL CHANCE FLOOD WITH AVERAGE DEPTHS OF LESS THAN 1-FOOT OR WITH DRAINAGE AREAS LESS THAN 1 SQUARE MILE; AND AREAS PROTECTED BY LEVEES FROM 1% ANNUAL CHANCE FLOOD.

NOTES:

1. THIS SURVEY WAS PREPARED IN ACCORDANCE WITH FIRST AMERICAN TITLE INSURANCE COMPANY FILE NO. 115288, 3RD AMENDED, DATED MAY 4, 2011 AT 4:00 PM.
2. THERE IS NO OBSERVABLE EVIDENCE OF BUILDING CONSTRUCTION OR BUILDING ADDITIONS WITHIN RECENT MONTHS.
3. THERE IS NO OBSERVABLE EVIDENCE OF SITE USE AS A SOLID WASTE DUMP, SUMP OR SANITARY LANDFILL.
4. INDIVIDUAL PARCEL OR LOT CORNERS WERE NOT SET AS PART OF THIS SURVEY.
5. ENCROACHMENTS ON PROPERTY:
a) CONCRETE CART PATH LOCATED NEAR THE SOUTHEASTERLY BOUNDARY.
b) VARIOUS BARRICADES LOCATED ALONG ESCAPE AND CARGO AVENUE.
c) UTILITY FACILITIES AND APPURTENANCES LYING OUTSIDE OF RECORDED EASEMENTS.

CERTIFICATION:

TO: RMG REAL ESTATE SERVICES III, L.L.C., AN ARIZONA LIMITED LIABILITY COMPANY, OR ASSIGNEE;
RMG RESIDENTIAL 2010, L.L.L.P., AN ARIZONA LIMITED LIABILITY LIMITED PARTNERSHIP;
RBC BANK (USA) FORMERLY KNOWN AS RBC CENTURA BANK, A NORTH CAROLINA BANKING CORPORATION;
FIRST AMERICAN TITLE INSURANCE COMPANY;
THOMAS TITLE & ESCROW, L.L.C.

THIS IS TO CERTIFY THAT THIS MAP OR PLAT AND THE SURVEY ON WHICH IT IS BASED WERE MADE IN ACCORDANCE WITH THE 2011 MINIMUM STANDARD DETAIL REQUIREMENTS FOR ALTA/ACSM LAND TITLE SURVEYS, JOINTLY ESTABLISHED AND ADOPTED BY ALTA AND NSPS, AND INCLUDES ITEMS 1, 3, 4, 8, 11(a), 16, 17, 18 AND 20(b) OF TABLE A THEREOF. THE FIELD WORK WAS COMPLETED ON 4 APRIL, 2011

Gene C. Harrison II
GENE C. HARRISON II, R.L.S., 22762

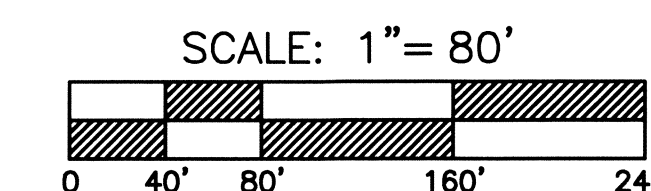
5-25-11
DATE



MERESTONE
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AL.T.A. / A.C.S.M. LAND TITLE SURVEY
FOR
MAGIC RANCH 50



MEASURED (M)		
LINE	BEARING	DISTANCE
L1	S31°26'59"W	78.72
L2	S35°32'29"W	50.50
L3	S62°57'37"E	184.34
L4	S62°44'54"W	80.09
L5	S51°27'29"W	41.56
L6	S11°03'55"E	26.17
L7	S49°03'56"W	15.90
L8	S71°05'50"W	13.59

(R) RECORD DATA PER THE LEGAL DESCRIPTION IN THE REFERENCED TITLE REPORT

(R1) RECORD DATA AS RECORDED IN THE FINAL PLAT OF "THE OASIS AT MAGIC RANCH-UNIT 1", CABINET B, SLIDE 52, P.C.R.

(R2) RECORD DATA AS RECORDED IN THE FINAL PLAT OF "OASIS MAGIC RANCH PHASE V AND VI", CABINET G, SLIDE 71, P.C.R.

- | | PROPERTY BOUNDARY |
|---|------------------------------|
|  | SEWER MANHOLE |
|  | WATER VALVE |
|  | WATER METER |
|  | WATER BLOW-OFF |
|  | DRYWELL |
|  | BARRICADE |
|  | FIBER OPTIC MARKER |
|  | UNDERGROUND FIBER OPTIC LINE |
|  | FIRE HYDRANT |
|  | TELEGRAPH POLE |
|  | WIRE FENCE |

- | | |
|-------|---|
| ○ GLM | UNDERGROUND GAS LINE MARKER |
| —■ | SIGN |
| ⊙ | Fd. BRASS CAP FLUSH |
| ● | Fd. REBAR w/CAP (ALL Fd. REBAR HAVE THE SAME NAME AND RLS NUMBER) |
| ■ | Fd. MONUMENT (TYPE IDENTIFIED ON PLAN) |



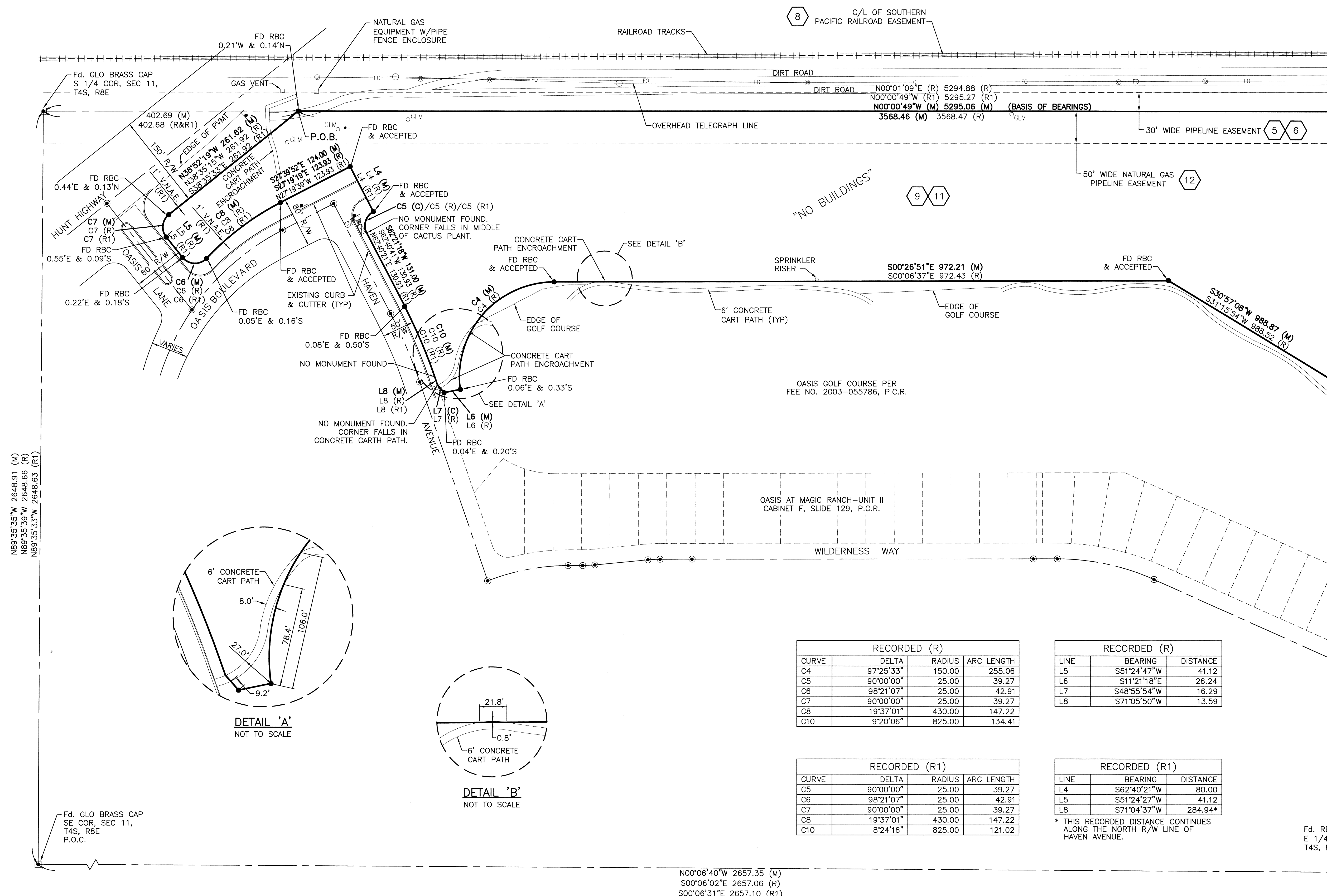
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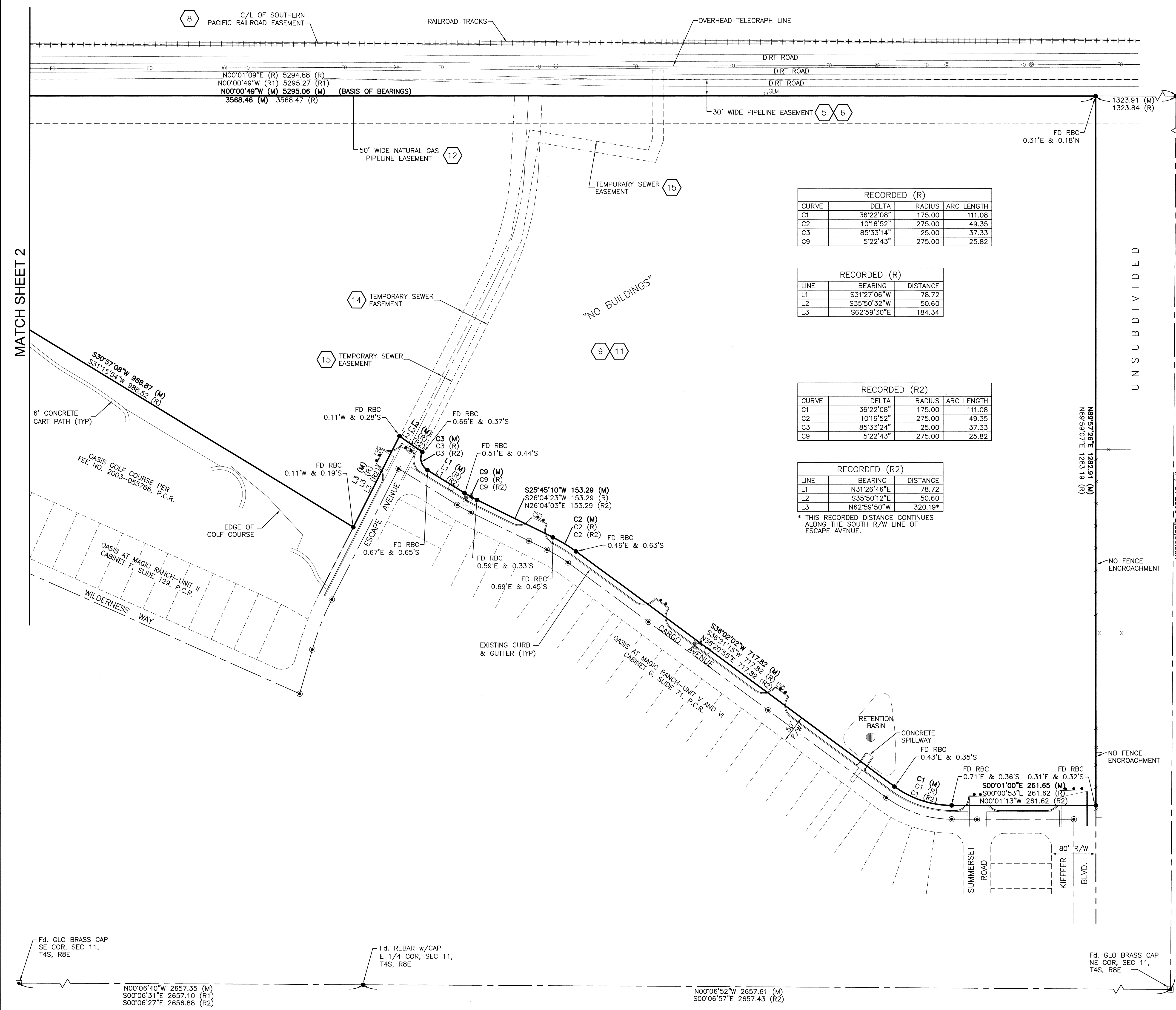
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**ALTA / A.C.S.M. LAND TITLE SURVEY
FOR
MAGIC RANCH 50**

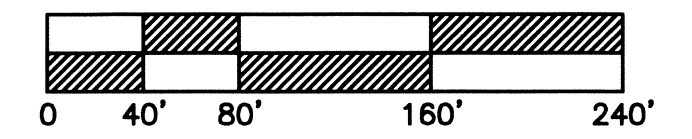
SHEET 2 OF 3

PROJ NO	11519	DWN	R/LM	CXD	GCH	DATE	April 2011
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SCALE: 1" = 80'

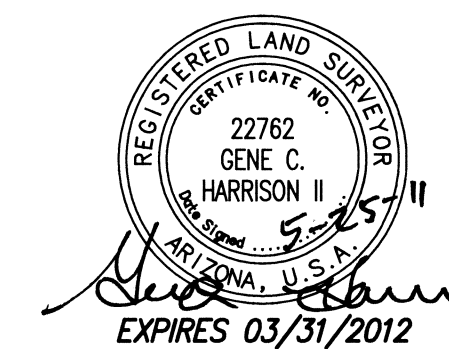


MEASURED (M)			
CURVE	DELTA	RADIUS	ARC LENGTH
C1	36°22'05"	175.00	111.08
C2	10°16'55"	275.00	49.35
C3	85°33'15"	25.00	37.33
C4	97°25'48"	150.00	255.07
C5	89°25'19"	25.00	39.02
C6	98°22'44"	25.00	42.93
C7	89°59'18"	25.00	39.26
C8	19°34'29"	430.00	146.91
C9	5°22'46"	275.00	25.82
C10	8°13'01"	843.45	120.96

MEASURED (M)		
LINE	BEARING	DISTANCE
L1	S31°26'59"W	78.72
L2	S35°32'29"W	50.50
L3	S62°57'37"E	184.34
L4	S62°44'54"W	80.09
L5	S51°27'29"W	41.56
L6	S11°03'55"E	26.17
L7	S49°03'56"W	15.90
L8	S71°05'50"W	13.59

LEGEND:

- (R) RECORD DATA PER THE LEGAL DESCRIPTION IN THE REFERENCED TITLE REPORT
- (R1) RECORD DATA AS RECORDED IN THE FINAL PLAT OF "THE OASIS AT MAGIC RANCH-UNIT 1", CABINET D, SLIDE 52, P.C.R.
- (R2) RECORD DATA AS RECORDED IN THE FINAL PLAT OF "OASIS MAGIC RANCH PHASE V AND VI", CABINET G, SLIDE 71, P.C.R.
- (M) MEASURED DATA
- (C) CALCULATED DATA
- P.O.B. POINT OF BEGINNING
- P.O.C. POINT OF COMMENCEMENT
- V.N.A.E. VEHICULAR NON-ACCESS EASEMENT
- PROPERTY BOUNDARY
- SEWER MANHOLE
- WATER VALVE
- WATER METER
- WATER BLOW-OFF
- DRYWELL
- BARRICADE
- FIBER OPTIC MARKER
- UNDERGROUND FIBER OPTIC LINE
- FIRE HYDRANT
- TELEGRAPH POLE
- BARBED WIRE FENCE
- UNDERGROUND GAS LINE MARKER
- SIGN
- Fd. BRASS CAP FLUSH
- Fd. REBAR w/CAP (ALL Fd. REBAR HAVE THE SAME NAME AND RLS NUMBER)
- Fd. MONUMENT (TYPE IDENTIFIED ON PLAN)



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ALTA. / A.C.S.M. LAND TITLE SURVEY
FOR
MAGIC RANCH 50

PROJ. NO. 11519 DWN BLM OKD GCH DATE April 2011

SHEET 3 OF 3

MATCH SHEET 2

UNSUBDIVIDED